

There is no evidence that less severe sanctions would not result in compliance. Given Defendant's Opposition and declaration in support thereof, it appears no sanctions of any kind are necessary to enforce compliance.

The Court denies Deny the motion as the evidence presented in Opposition shows Plaintiff did not provide notice of the court's rulings on its discovery orders.

4.

CASE #	CASE NAME	HEARING NAME
CVRI2505646	FLETCHER vs RIVERSIDE HEALTHCARE & WELLNESS CENTRE, LLC	MOTION TO COMPEL RESPONSES OF PLAINTIFF KIMBERLY NAUCLER AS SUCCESSOR-ININTEREST TO KAELYNN FLETCHER TO DEFENDANT'S FORM INTERROGATORIES, SET ONE

Tentative Ruling:

Summary of Ruling: The Court denies the motion finding the motions are moot. Based on the evidence in the before the Court, the responses served by Plaintiffs on 9/15/2026 were Code-compliant and contained no objections. Defendant is awarded \$1,100 in total sanctions for all motions.

Factual / Procedural Context:

This is a wrongful death action. Plaintiffs Elizabeth and Lonnie Fletcher and Kimberly Naucer as successor-in-interest to Kaelynn Fletcher ("Plaintiffs") allege that on Kaelynn Fletcher ("Kaelynn" or "Decedent") was an intellectually disabled dependent adult. On February 23, 2019, Kaelynn was admitted to a care facility owned and/or operated by Defendant Elizabeth Manor Housing Foundation, Inc. dba Elizabeth Manor Residential Care ("Elizabeth Manor"). Plaintiffs allege that staff at Elizabeth Manor insulted, humiliated and mocked Kaelynn's physical appearance and hygiene and threatened her with physical violence. On April 23, 2021, Kaelynn eloped from the facility. On January 13, 2023, Kaelynn slipped and fell while showering due to the staff's failure to properly assist her. In November 2023, Elizabeth Manor failed to seek necessary medical treatment in response to Kaelynn's pneumonia symptoms. Kaelynn was admitted to the hospital where she was treated for pneumonia and underwent surgery to repair a fractured ankle. She was then transferred to a facility owned by Defendant Riverside Healthcare & Wellness Centre, LLC dba Alta Vista Healthcare & Wellness Centre ("Alta Vista"). Plaintiffs allege that Alta Vista failed to provide or administer medical prescribed by the hospital. Plaintiffs further allege that Alta Vista coerced Kaelynn into signing legal and financial documents despite her disability. Kaelynn was permitted to return to Elizabeth Manor for Christmas to receive gifts. While there, she was not provided with a wheelchair or assistance with ambulating. As a result, Kaelynn fell face first at the front door of Elizabeth Manor, striking her head on concrete. Elizabeth

Manor failed to promptly seek necessary medical care. Kaelynn died on Christmas day. The cause of death was pulmonary thromboemboli due to deep vein thrombosis.

Plaintiffs filed the Complaint on September 23, 2025 and the operative Third Amended Complaint (“TAC”) on June 16, 2026. They assert five causes of action for: (1) 1. Statutory Violation of California’s Elder and Dependent Adult Civil Protection Act (Wel. & Instit. Code §15600 et seq.); (2) Violation of the Patient’s Bill of Rights/Health & Safety Code §1430; (3) Professional Negligence; (4) Negligence; and (5) Wrongful Death.

On March 30, 2026, Alta Vista served written discovery, including Requests for Production, Set One (“RFP”), Special Interrogatories, Set One (“S-Rogs”) and Form Interrogatories, Set One (“F-Rogs”) on Plaintiff Kimberly Naucer. Alta Vista also served F-Rogs on Plaintiffs Elizabeth Fletcher and Lonnie Fletcher. None of the Plaintiffs served any discovery responses.

In separate motions, Alta Vista now moves to compel responses to the RFPs, S-Rogs and F-Rogs from Plaintiff Naucer and moves to compel F-Rog responses from Plaintiffs Elizabeth and Lonnie Fletcher. Alta Vista argues that all objections have been waived. Alta Vista argues that sanctions are warranted for each motion (\$460 for the S-Rog and RFP motions against Plaintiff Naucer; \$260.00 for the F-Rog motion against Naucer; and \$160.00 against for each F-Rog motion against Elizabeth and Lonnie.)

In their joint opposition, Plaintiffs argue that Alta Vista failed to meet and confer in good faith and filed the motions while the meet and confer process was ongoing. Plaintiffs assert that Code-compliant responses have been served rendering the motions moot. Plaintiffs argues that sanctions are unwarranted and request sanctions against Alta Vista due to the failure to meet and confer.

ANALYSIS:

Motion to Compel Responses:

Any party may obtain discovery by propounding to any other party written interrogatories. (CCP §2030.010(a).) Likewise, a party may obtain discovery by inspecting, copying, testing, or sampling documents, tangible things, land or other property, and electronically stored information in the possession, custody, or control of any other party to the action. (CCP §2031.010(a).) The party to whom the interrogatories or RFPs are served must serve a response within 30 days after service. (CCP §§2030.260(a); 2031.260(a).) If the responding party fails to serve a timely response, the party waives all objections, including those based on privilege. (CCP §§2030.290(a); 2031.230(a).) The propounding party may move to compel a response. (CCP §2030.290(b); 2031.300(b).) Importantly, there is no meet and confer requirement under sections 2030.290 or 2031.300.

In this case, Alta Vista propounded the discovery at issue on March 30, 2026. (Decl. of Gari, ¶ 3.) As such, responses were due on May 1, 2026. (Id at ¶ 4.) Alta Vista granted

three extensions until June 29, 2026. (Id at ¶ 6; Ex. B.) However, Plaintiffs failed to serve any discovery until September 15, 2026.³ (Decl. of Bristow, ¶10.)

Plaintiffs argue that because they served Code-compliant responses, the motions to compel initial responses are now moot. “If a party provides an untimely interrogatory response that does not contain objections and that sets forth legally valid responses to each interrogatory, the untimely response might completely or substantially resolve the issues raised by a motion to compel responses under section 2030.290.” (*Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal. App. 4th 390, 408-409.) Counsel indicates that Plaintiffs served verified, code-compliant “supplemental” discovery responses to the discovery requests at issue in Alta Vista’s Motions to Compel, it is not clear whether the responses include objections, which have been waived.⁴ To the extent that the responses are Code-compliant and do not include objections, the motions are moot. Otherwise, Plaintiffs should be ordered to provide objection-free responses within 15 days.

Here, based on the evidence before the Court, the responses served by Plaintiffs on 9/15/2026 were Code-compliant and contained no objections.

Sanctions:

The court shall impose a monetary sanction against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel a discovery response, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust. (CCP §§ 2030.300(d); 2031.310(h).) If a party provides an untimely discovery response after a motion to compel has been filed, that completely resolves the substantive issues, the court retains the authority to hear the motion and award sanctions. (See *Sinaiko, supra*, 148 Cal. App. 4th at 408-409.) “Whenever one party’s improper actions even if not “willful”—in seeking or resisting discovery necessitate the court’s intervention in a dispute, the losing party presumptively should pay a sanction to the prevailing party.” (*Ellis v. Toshiba America Information Systems, Inc.* (2013) 218 Cal. App. 4th 853, 878.)

Plaintiffs argue that sanctions are unwarranted because Alta Vista initiated a meet and confer process and then filed the motions without resolving the issues informally. Plaintiffs argue that the Discovery Act requires a party moving to compel further discovery responses must show that he or she made a serious attempt to obtain an informal resolution of each issue. (*Townsend v. Superior Court* (1998) 61 Cal. App. 4th 1431, 1435.) “The level of effort at informal resolution which satisfies the “reasonable and good faith attempt” standard depends upon the circumstances. In a larger, more complex discovery context, a greater effort at informal resolution may be warranted. In a simpler, or more narrowly

³ Counsel refers to the September 15 responses as “supplemental responses”. However, he does not indicate that any responses were served prior to the “supplemental” responses.

⁴ On motion, the court may relieve a responding party from the waiver of objections if the court determines that the party has served a response in substantial compliance with the discovery code and the party’s failure to serve a timely response was the result of mistake, inadvertence or excusable neglect. (CCP §§2030.290(a); 2031.300(a).) “A noticed motion for relief from waiver is required. (i.e., such relief cannot be granted ex parte, or where the only motion pending is a motion to compel.” (Weil & Brown, Cal. Practice Guides: Civ. Pro. Before Trial (The Rutter Group, 2022) 8:1034.) Plaintiffs have not filed a motion for relief from waiver under sections 2030.290 and 2031.300. Accordingly, any objections asserted in the September 15 responses are improper.

focused case, a more modest effort may suffice. The history of the litigation, the nature of the interaction between counsel, the nature of the issues, the type and scope of discovery requested, the prospects for success and other similar factors can be relevant.” (*Obregon v. Superior Court* (1998) 67 Cal. App. 4th 424, 431.) However, the cases cited by Plaintiffs involve motions to compel further discovery responses which require a meet and confer declaration rather than motions to compel initial discovery, which do not.

Counsel asserts that on July 9 and 10, 2026, Plaintiffs requested a two-week, which was not expressly rejected. (Decl. of Bristow, ¶ 8.) However, contrary to Plaintiffs’ assertion, the meet and confer email suggests that Alta Vista was concerned about granting additional extension without a definite indication as to the date for the responses. (Id, Ex. A.) Moreover, it appears that the responses were not served by the alleged two-week extended deadline. In fact, responses were not served until September 15, 2026, more than two months after the meet and confer discussions. Plaintiffs’ failure to provide any discovery until after the present motions were filed was not substantially justified. Thus, sanctions are warranted.

The sanctions requested by Alta Vista are somewhat excessive considering that the motions are essentially identical. Alta Vista is awarded \$260 for the first F-Rog motion, S-Rog motion and the RFP motion and \$160 for each additional F-Rog motion for a total of \$1,110.

5.

CASE #	CASE NAME	HEARING NAME
CVRI2505646	FLETCHER vs RIVERSIDE HEALTHCARE & WELLNESS CENTRE, LLC	MOTION TO COMPEL RESPONSES OF PLAINTIFF ELIZABETH FLETCHER TO DEFENDANT’S FORM INTERROGATORIES, SET ONE

Tentative Ruling:

See #4 above

6.

CASE #	CASE NAME	HEARING NAME
CVRI2505646	FLETCHER vs RIVERSIDE HEALTHCARE & WELLNESS CENTRE, LLC	MOTION TO COMPEL RESPONSES OF PLAINTIFF LONNIE FLETCHER TO DEFENDANT’S FORM INTERROGATORIES, SET ONE

Tentative Ruling:

See #4 above